
LEGAL ENTITY OVERVIEW

Corporate Structure, Governance & Incorporation Details

THREE JURISDICTIONS. ONE MISSION. PERMANENT STRUCTURE.



CORPORATE STRUCTURE OVERVIEW



The University of Artemis is structured across three jurisdictions for global reach. Image: Unsplash

The University of Artemis operates through a coordinated legal structure spanning three jurisdictions: the United States (primary), England and Wales (secondary), and Switzerland (tertiary). This structure ensures tax deductibility for donors worldwide, regulatory compliance across all operating jurisdictions, and robust governance that prevents any single individual from controlling the institution. Each entity has a distinct purpose within the overall structure, and all entities are governed by compatible constitutional documents that ensure alignment with the university's charitable mission.

PRIMARY ENTITY: DELAWARE NON-STOCK CORPORATION

The primary legal entity is a Delaware Non-Stock Corporation, the standard structure for US charitable organisations. Delaware provides the most favourable corporate law environment for non-profit entities, including flexible governance structures, strong director protections, and an established body of case law. The corporation has filed IRS Form 1023 for 501(c)(3) determination, which provides retroactive deductibility within 27 months of incorporation. The corporation has no shareholders, no owners, and no private benefit. All assets are dedicated to the charitable purpose of advancing education. The board of trustees must have a minimum of 3 independent members, and no single individual may control more than one-third of board seats.

Feature	Detail
Legal Form	Non-Stock Corporation
State of Incorporation	Delaware
IRS Classification	501(c)(3) - Educational & Charitable
Form 1023 Status	Filed; determination pending
Minimum Board Members	3 (majority independent)
Ownership	No shareholders; no private benefit
Fiscal Sponsor	Rockefeller Philanthropy Advisors (interim)
Registered Agent	Delaware registered agent on file

SECONDARY ENTITY: CHARITABLE INCORPORATED ORGANISATION

The secondary entity is a Charitable Incorporated Organisation (CIO) registered with the Charity Commission for England and Wales. The CIO structure provides the benefits of charitable status (Gift Aid, tax relief, public trust) without the dual registration requirements of a company limited by guarantee. The CIO must have a minimum of 3 trustees and a UK registered office. Gift Aid eligibility means that every qualifying donation from a UK taxpayer is increased by 25% at no cost to the donor. The CIO structure is recognised by Commonwealth jurisdictions worldwide, extending the university's reach to Canada, Australia, New Zealand, and other Commonwealth nations through reciprocal tax treaties and equivalency determinations.

TERTIARY ENTITY: SWISS FONDATION

The tertiary entity is a Fondation under the Swiss Civil Code, registered in the Canton of Geneva. Switzerland is the world's leading jurisdiction for international charitable foundations, hosting over 4,000 organisations including WHO, CERN, and the IOC. The Fondation structure provides minimal tax drag on endowment growth (no capital gains tax, minimal income tax on investment returns), strong governance oversight through cantonal supervision, and international credibility that signals institutional permanence to European and Gulf donors. The minimum initial capital is CHF 50,000, and the foundation must be approved by the cantonal authority before it can begin operations.

GOVERNANCE FRAMEWORK

All three entities operate under compatible governance documents that ensure alignment with the university's charitable mission and prevent any single individual from exercising control. The governance framework includes three bodies: the Board of Trustees (financial and legal oversight), the Academic Senate (academic standards and curriculum), and the Board of Visitors (donor and alumni advisory). Annual independent audits by a Big Four firm are mandatory and published. Every dollar received and disbursed is published in an annual impact report available to the public. The governance structure is designed to ensure transparency, accountability, and permanence – the university must outlive its founders, and its governance must be robust enough to ensure that outcome.